Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Tuesday, February 20, 2024

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower (exited at 2:00 p.m.)

Mayor Collier called the closed session meeting to order at 12:33 p.m.

Closed Session (12:34 p.m.)

3. Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: S. Lee
Seconded by: N. Henry

That Council convene to a Closed Session pursuant to Section 239 (2) (e) of the *Municipal Act, 2001,* as amended, to discuss a matter pertaining to litigation or potential litigation, including matters before administrative tribunals, affecting the municipality or local board.
CARRIED

3.1 **Central Park Ajax – Receivership Update**

Open Meeting (1:03 p.m.)

Council recessed at 1:04 p.m.

Council resumed at 1:08 p.m.

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 1:08 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

Mayor Collier declared an interest with respect to item 6.3, Black History Month, as the delegate has an outstanding Ontario Human Rights Tribunal (HRTO) complaint against the Town, and he is named personally in the HRTO application.

4. Adoption of the Minutes

Moved by: J. Dies
Seconded by: M. Crawford

That the minutes of the Regular Meeting of Council held on January 29, 2024 be adopted.
CARRIED

5. Question Period

Mayor Collier invited questions on agenda items from those present.

Max and Dennis Tarsky, Ledim Developments Ltd., expressed concerns regarding By-law 12-2024, being a by-law to impose a Community Benefits Charge. Council Members asked questions and Mr. D. Tarsky and Mr. M. Tarsky responded to questions from Council Members.

Council Members asked questions further questions regarding By-law 12-2024. Sean McCullough, Supervisor, Policy Planning & Research, responded to questions from Council Members.

Motion to Refer

Moved by: S. Collier
Seconded by: R. Tyler Morin

That By-law 12-2024 be referred to staff and that staff report back to Council with additional information following further consultation with the Ministry of Municipal Affairs and Housing.

MOTION LOST

6. Delegations, Presentations, and Public Meetings

6.1 Delegation: Durham Region's 2025 Strategic Plan Update

Andrea Smith, Policy Advisor, Corporate Initiatives, Regional Municipality of Durham delivered a presentation regarding Durham Regin's 2025 Strategic Plan Update.

Council Members asked questions related to the presentation. A. Smith responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked A. Smith for her delegation.

6.2 Delegation: Hospice Whitby – Roger Anderson House: Project Update

J. McWilliam noted that Eva Reti, Board Chair, Hospice Whitby – Roger Anderson House, withdrew her delegation.

Mayor Collier vacated the Chair. Deputy Mayor Crawford assumed the Chair.

6.3 Delegation: Black History Month

Carion Fenn, Durham Black Network/Carion Fenn Foundation, provided a presentation on Black History Month.

Council Members asked questions related to the presentation. C. Fenn responded to questions from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked C. Fenn for her delegation.

Mayor Collier resumed the Chair.

7. Correspondence

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the report dated February 20, 2024 containing Items of Correspondence be received for information.

CARRIED

8. Reports

8.1. Community Affairs & Planning Committee Report

8.1.1 Community Affairs & Planning Committee, February 5, 2024

Moved by: R. Tyler Morin
Seconded by: J. Dies

That the Community Affairs & Planning Report dated February 5, 2024 be adopted.

8.2. **General Government Committee Report**

8.2.1 **General Government Committee, February 12, 2024**

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the General Government Committee Report dated February 12, 2024 be adopted.

CARRIED

8.3 **Summary of Advisory Committee Activities**

None

8.4 **Departmental Reports**

8.4.1 **PSA-2024-02: NG 9-1-1 Transition Funding Update and Related Contract Awards**

Moved by: J. Dies
Seconded by: N. Henry

1. That Council award the following contracts in the amount of $580,402.94 (inclusive of taxes)

Award	Vendor	Award Value (inclusive of taxes)	Contract
1	CDW Canada	316,344.54	Network Security System
2	CDW Canada	105,818.23	Network Switches
3	CDW Canada	36,346.22	Access Points
4	Dell Technologies	19,603.24	Server
5	CDW Canada	13,377.79	UPS /cables
6	Digital Boundary	50,544.90	Security Assessment
7	CDW Canada	28,198.02	Network Security Implementation
8	Advanced Construction	10,170.00	Cable mgmt /installation

2. That Council approve additional funding up to the grant value of $1,000,000 to be awarded by staff.

CARRIED

8.4.2 **PSA-2024-04: Underutilized Town Facilities Update**

Committee Members asked questions related to the contents of the report. Kassandra Cruciano, Manager, Strategic Affairs, Geoff Romanowski, Director of Planning & Development Services, and Christie McLardie, Director of Public & Strategic Affairs, responded to questions from Council Members.

Moved by: S. Lee
Seconded by: M. Crawford

That the report entitled ‘Underutilized Town Facilities – Update’ be received for information.

CARRIED

9. Regional Councillors’ Report

Regional Councillor Members provided updates regarding Durham’s transition to Extended Producer Responsibility (EPR) and Organics Program changes effective July 1, 2024, the Durham Region Transit ‘One Fare’ program, and a housing and homelessness education session.

Moved by: J. Dies

Seconded by: S. Lee

That the Regional Councillors' Reports of February 20, 2024 be received for information.

CARRIED

10. Business Arising from Notice of Motion

10.1 Endorsing Regional Councillor Crawford for the Association of Municipalities of Ontario (AMO) Board of Directors

Regional Councillor Crawford abstained from voting due to a perceived conflict given that she is the subject of the motion.

Councillor Tyler Morin and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: R. Tyler Morin
Seconded by: S. Lee

WHEREAS in March 2023, Regional Councillor Marilyn Crawford was appointed to the Association of Municipalities of Ontario (AMO) Board of Directors for the 2022-2024 term;

AND WHEREAS AMO is a leader in municipal advocacy and policy development;

AND WHEREAS a representative on the Board of Directors from Ajax strengthens the Town's position when advocating for local needs;

AND WHEREAS Regional Councillor Crawford has announced her intention to seek a second term on the AMO Board;

AND WHEREAS AMO's election process requires a motion from the local council supporting the candidacy of each representative to the Board of Directors;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council endorses Regional Councillor Crawford as a representative to the AMO Board of Directors; and

2. The Public and Strategic Affairs - Government Relations budget fund any costs associated with Regional Councillor Crawford attendance at AMO Board of Directors meetings; and

3. The Clerk forward the resolution endorsing Council's support to AMO.

CARRIED

10.2 Urging That a Second National Summit to Combat Antisemitism be Convened

Mayor Collier and Councillor Tyler Morin introduced the motion and reviewed its contents.

Moved by: S. Collier
Seconded by: R. Tyler Morin

WHEREAS data from Statistics Canada and Jewish organizations such as the Centre for Israel and Jewish Affairs, Friends of Simon Wiesenthal Centre, and B'nai Brith indicate a shocking rise in antisemitic incidents across Canada over the past years;

AND WHEREAS Canada's Jewish community has witnessed shots fired at its schools, arson attempts at its communal buildings, boycott efforts, and vandalism targeting private businesses simply because their owners are Jewish and the intimidation of its students at universities;

AND WHEREAS a first national summit to combat antisemitism was convened by then Special Envoy for Preserving Holocaust Remembrance and Combatting Antisemitism, the Honourable Irwin Cotler, in July 2021, alerting Canadians to a spiralling number of hate incidents including violent attacks on Jewish people in Toronto and Montreal;

AND WHEREAS the first summit led to Canada forming a high-level delegation headed by Prime Minister Justin Trudeau that made robust promises to the International Holocaust

Remembrance Alliance's (IHRA) Conference in October 2021 on how Canada could better confront hate aimed at Jewish people;

AND WHEREAS Marvin Rotrand, the outgoing National Director of B'nai Brith's League for Human Rights, has called on municipalities and school boards to adopt resolutions urging the convening of a second national summit;

AND WHEREAS the Government of Canada has appointed Deborah Lyons, Canada's former Ambassador to Israel, as the new Special Envoy for Preserving Holocaust Remembrance and Combatting Antisemitism;

AND WHEREAS the authority vested in her office permits her to be uniquely placed to convene and chair a second summit;

AND WHEREAS a second national summit to combat antisemitism would provide a valuable forum for stakeholders representing all levels of government, civil servants, law enforcement agencies, educators and community leaders to share information and develop effective strategies to blunt the unprecedented wave of hate aimed at Jewish people;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council urge the Government of Canada to direct the Special Envoy for Preserving Holocaust Remembrance and Combatting Antisemitism to convene a second national summit to combat antisemitism;

2. Council call upon the Government of Canada to ensure the necessary funding and resources are in place to support a second national summit; and,

3. That a copy of this motion be sent to the leaders of all parties represented in the Parliament of Canada, and the Honourable Mark Holland, MP for Ajax.

CARRIED

10.3 **Call for a Second National Action Summit on Islamophobia**

Regional Councillor Lee and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: M. Crawford

WHEREAS on July 22, 2021, the Government of Canada held a virtual National Summit on Islamophobia;

AND WHEREAS the summit provided a national platform for Muslim communities to identify concrete ways to combat Islamophobia across the country;

AND WHEREAS as a result of the summit, the government made several commitments to combat Islamophobia and vowed to continue to stand with and support Muslim communities, fight against all forms of discrimination, and work to create a safer and more inclusive Canada for all;

AND WHEREAS on January 26, 2023, the Government of Canada appointment Amira Elghawaby the Special Representative on Combatting Islamophobia to serve as a champion to support and enhance the federal government's efforts in the fight against Islamophobia, systemic racism, racial discrimination and religious intolerance;

AND WHEREAS Canada's Muslim community continues to experience acts of vandalism and anti-Muslim hate;

AND WHEREAS a second national summit to combat Islamophobia would provide a valuable forum to reflect on the steps that have been taken to date and develop new strategies to combat Islamophobia;

NOW THEREFORE BE IT RESOLVED THAT:

1. Council request the Government of Canada to direct the Special Representative on Combatting Islamophobia to convene a second National Summit on Islamophobia; and

2. Council call upon the Government of Canada to ensure the necessary funding and resources are in place to support a second national summit; and,

3. That a copy of this motion be sent to the leaders of all parties represented in the Parliament of Canada, and the Honourable Mark Holland, MP for Ajax.

CARRIED

11. By-laws

Members requested that the question be divided and that by-law 12-2024 be voted on separately.

Moved by: S. Lee
Seconded by: R. Tyler Morin

That By-law numbers 13-2024 to 15-2024 be read a first, second and third time and passed.

CARRIED

Moved by: S. Lee
Seconded by: R. Tyler Morin

That By-law number 12-2024 be read a first, second and third time and passed.

CARRIED

Note: By-law 12-2024 was later vetoed by Mayoral veto.

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members highlighted upcoming community events and matters of community interest.

14. Confirming By-Law

Moved by: M. Crawford
Seconded by: S. Lee

That By-law number 16-2024 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on February 20, 2024, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: R. Tyler Morin
Seconded by: N. Henry

That the February 20, 2024 meeting of the Council of the Town of Ajax be adjourned (2:47 p.m.)

CARRIED

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Mayor

_____
D-Clerk